

**IN THE COURT OF THE X ADDL. CITY CIVIL &
SESSIONS JUDGE, BENGALURU (CCH-26)**

Dated this the 8th day of December, 2025

Present

Sri. Vijaya Kumar Rai, B.Com., LL.B.,
X Addl. City Civil & Sessions Judge,
Bengaluru.

Ex.No.1655 & 1657/2023

<u>Decree Holder in Ex.No.1655/2023:</u>	Mrs.Sharmi Josephine Rufena
<u>Decree Holder in Ex.No.1657/2023:</u>	Mr.Joseph Prasanna Kumar
<u>Vs.</u>	
<u>Common Judgment Debtors:</u>	1) Mr.Albert Deepak 2) Mrs.Maria Deepa Abel 3) Mrs.urasala Rajan 4) Oasis Technologies India 5) Oasis Websolutions India Pvt. Ltd. 6) Mrs.Fathima Susainathan

ORDERS

These execution petitions are filed pursuant to the judgement and decree passed by this Court dated 21.02.2023 wherein the suits filed by the decree holders are decreed and judgment debtors are directed to pay a sum of ₹15 lakhs each in O.S.No.3404/2018 and 3439/2018 along with interest at the rate of 18% per annum from 18.04.2015. Pursuant to the decree passed by this Court in these two suits, the decree holders have filed separate execution petitions. During the pendency of the execution petitions, the parties have filed a joint memo dated 14.12.2023

wherein the parties have come to a conclusion to pay the decretal amount in which the judgment debtors have issued several cheques by specifying the dates. When those cheques were presented for encashment, they were dishonoured. Later the amount involved in the cheques were paid, but, not as on the date agreed in the joint memo which has resulted in dispute with regard to the arrears of amount. Earlier when the matter was posted for hearing on 12.09.2025, there was no representation from the decree holders and therefore the case was closed, but on the same date, 4:50 PM an application was filed for restoration of the petition and therefore the case was restored. Later both the parties have filed their calculation memo.

2. Heard the arguments.

3. The point for determination of this Court is:-

Whether judgment debtors are still in arrears of the decretal amount, if so what amount?

4. Finding of this Court on the above point is as hereunder:-

“The J.Drs. are liable to pay a sum of Rs.14,89,781/- along with interest at the rate of 18% p.a. from 07.04.2025”, for the following:-

- : REASONS : -

5. It is not in dispute that O.S.No.3404/2018 was filed by the decree holder Mr.Joseph Prasanna Kumar and O.S.No.3439/2018 is filed by his wife Mrs.Sharmi Josephine Rufena and both the suits were decreed, directing the judgment debtors to pay sum of ₹15 lakhs each with interest at the rate of 18% per annum from 18.04.2015. It is also not in dispute that the said decree has attained finality. In so far as O.S.No.3404/2018 is concerned, execution case No.1657/2023 is filed and in so far as O.S.No.3439/2018 are concerned, Ex.case No.1655/2023 is filed. It is also not in dispute that during the pendency of both these execution petitions, a common joint memo is filed wherein the judgment debtors have agreed to pay a total sum of Rs.84,00,000/- on the dates mentioned therein. It is also not in dispute that until the filing of the joint memo, no amount was paid. The contents of the joint memo read as hereunder:-

“1. It is submitted, the decree holder has obtained a judgment and decree against the judgment debtors for receipt of the sum of money as per the judgment and decree drawn in O.S.No.3439/2018 and O.S.No.3404/2018. Till date including interest accumulated sum of Rs.84,00,000/- upto 30.11.2024.

2. It is submitted, at the intervention of the well wishers, both parties have mutually decided to

resolve the issues between them in terms stated below. The judgment debtors No.1 & 2 issued following post dated cheques mentioned above amount.

3. The judgment debtors shall issue a cheque bearing No.1000987 dated 31.01.2024 drawn on ICICI Bank, Bangalore for a sum of Rs.10,00,000/- 000988 dated 31.01.2024 drawn on ICICI Bank, Bangalore for a sum of Rs.10,00,000/- which the judgment and decree No.2 issued a cheque bearing No.1 00006 dated 31.01.2024 drawn on HDFC Bank, Bangalore for a sum of Rs.10,00,000/- 00007 dated 31.01.2024 drawn on HDFC Bank, Bangalore for a sum of Rs.10,00,000/- which the judgment debtor No.2 issue shall honor.

4. The judgment debtor No.1 shall issue a cheque bearing No.000989 dated 30.11.2024 drawn on ICICI Bank, Bangalore for a sum of Rs.10,00,000/- shall issue a cheque bearing No.000990 dated 30.11.2024 drawn on ICICI Bank, Bangalore for a sum of Rs.12,00,000/- judgment debtor No.2 issue a cheque bearing No.000010 dated 30.11.2024 drawn on HDFC Bank, Bangalore for a sum of Rs.12,00,000/- which the judgment debtors shall honour.

5. Subject to the judgment debtors honoring of the above cheques, the decree holder shall term it as complete satisfaction of the judgment and decree and undertakes not to make any further claim against the judgment debtors".

6. As per the terms of joint memo, the judgment debtors were liable to pay a sum of Rs.40 lakhs on 31.01.2024 by way of four separate cheques of Rs.10 lakhs each. Further, remaining amount of ₹44 lakhs was agreed to be paid on 30.11.2024 by way of 4 separate cheques of Rs.10 lakhs, Rs.12 lakhs, Rs.10 lakhs and Rs.12 lakhs totally amounting to ₹84 lakhs. But, it is an admitted fact that the cheques as agreed were not honoured on the respective dates. On the other hand, the judgment debtors have paid a sum of ₹3 lakhs and another Rs.5 lakhs on 04.03.2024, and a sum of ₹10 lakhs and Rs.5 lakhs respectively on 15.06.2024, a sum of ₹8,70,000/- and Rs.3 lakhs on 10.07.2024, a sum of Rs.5 lakhs and Rs.3 lakhs respectively on 02.09.2024, a sum of ₹10 lakh on 15.01.2025 and a sum of ₹7 lakhs and Rs.10 lakhs on 25.03.2025 and a sum of Rs.10 lakhs and Rs.7 lakhs on 07.04.2025 and thereby they have paid a total sum of ₹84 lakhs. Therefore, the decree holders are aggrieved by the same and it is stated that they have even filed complaint under Section 138 of Negotiable Instruments Act for the dishonour of the cheques.

7. The decree holders have given the calculation memo and judgment debtors have submitted that when the entire amount of

Rs.84,00,000/- agreed in the joint memo is paid, the judgment debtors are not liable to pay any amount.

8. It is relevant to note that as per the terms of the joint memo, the judgment debtors have agreed to pay the amount of Rs.84 lakhs on the date specified therein. It is also admitted fact that the amounts are not paid as agreed in the joint memo. Admittedly, there was delay in the payments. Now the question for consideration is when there was delay in payments merely because the judgment debtors have paid agreed amount of ₹84 lakhs whether the execution petition can be closed as satisfied.

9. As stated above, the decree was passed directing the judgment debtors to pay the amount with 18% interest till the date of realisation from 18.04.2015. Therefore, as per the decree, the decree holders are entitled for the interest even until the realisation. Though the joint memo was filed, agreeing to pay a sum of ₹84 lakhs, para No.5 of the joint memo specifically provides that **“subject to the judgment debtors honouring of the above cheques, the decree holder shall term it as complete satisfaction of the judgment and decree and undertakes not to make any further claim against the judgment debtors”**. Therefore, though there was a joint memo agreeing to settle the dispute for a total sum of Rs.84 lakhs, it was subject to honouring of the cheques. Admittedly, the cheques were not honoured as

agreed in the joint memo. Under these circumstances, it cannot be said that merely because the judgment debtors have paid ₹84 lakhs the plaintiffs cannot claim interest. The joint memo is subject to a specific clause provided therein and it is a conditional agreement. When the judgment debtors have failed to adhere to the conditions stated in the joint memo, the claim of the decree holder cannot be restricted to the amount stated in the joint memo. Hence, the decree holders are entitled to claim interest.

10. As stated above, until the filing of the joint memo, no payment was made. There is no dispute with regard to the dates of the payment. The decree holder has calculated the simple interest payable and submitted a calculation memo till the date of payment of Rs.84 lakhs made by the judgment debtors. The calculation made in respect of two execution petitions is as hereunder:-

Principal amount	Int. Rate	Start Date	End Date	Period		Repayment by defendants	Interest amount	Total (Principal+ Int)
3000000	18%	18.04.2015	17.04.2022	7	Years		37,80,000	67,80,000
3000000	18%	18.04.2022	21.02.2023	310	Days		4,58,630	72,38,630
72,38,630	18%	22.02.2023	04.03.2024	413	Days		14,74,301	87,12,931
			04.03.2024			300000		84,12,931
			04.03.2024			500000		79,12,931
79,12,931	18%	04.03.2024	15.06.2024	103	Days		4,01,934	83,14,864
			15.06.2024			1000000		73,14,864
			15.06.2024			500000		68,14,864
68,14,864	18%	15.06.2024	10.07.2024	25	Days		84,019	68,98,883
			10.07.2024			870000		60,28,883
			10.07.2024			300000		57,28,883
57,28,883	18%	10.07.2024	02.09.2024	54	Days		1,52,561	58,81,444
			02.09.2024			500000		53,81,444
			02.09.2024			30000		53,51,444

53,51,444	18%	02.09.2024	15.01.2025	135	Days		3,56,274	57,07,718
			15.01.2025			1000000		47,07,718
47,07,718	18%	15.01.2025	25.03.2025	69	Days		1,60,191	48,67,910
			25.03.2025			700000		41,67,910
			25.03.2025			1000000		31,67,910
31,67,910	18%	25.03.2024	07.04.2025	14	Days		21,872	31,89,781
			07.04.2025			1000000		21,89,781
			07.04.2025			700000		14,89,781
						84,00,000	68,89,781	

As per the above table, when the agreed rate of 18% interest is calculated total amount payable by the judgment debtors was Rs.98,89,781/- in which Rs.84 lakhs is paid and thereby the due amount is Rs.14,89,781/-.

11. The decree holders have also claimed the cost of the suit amounting to ₹2,65,020/- and the interest on the cost of the suit. In the joint memo, though there is a recital that it is subject to honouring of the cheques, earlier the parties have given up the cost of the suit and interest therein. The joint memo do not stipulate that in case of failure to honour the cheques, the judgment debtors are liable to pay even the cost of the suit and interest thereon. Therefore, it is not appropriate to add the cost of the suit and interest upon it. In so far as the interest in respect of the decretal amount, above calculation is strictly in accordance with the decree and it is a simple interest calculation. The judgment debtors are liable to pay the interest more particularly when the cheques issued by them were dishonoured and as they have failed to adhere to the terms of joint memo. Therefore, in the opinion of

the court judgment debtors are liable to pay a sum of ₹14,89,781/- fallen due as on 07.04.2025 along with interest at rate of 18% per annum until the payment. On these observations, the above point is answered and the following order is passed:-

ORDER

The judgment debtors shall pay a total sum of ₹14,89,781/- along with interest at the rate of 18% per annum from 07.04.2025 until its realisation in connection with the claim made in Ex.C.No.1655/2023 and Ex.C.No.1657/2023.

It is made clear that the above amount is in respect of both the execution petitions and not separate.

(Dictated to the Dictaphone and Speech to Text App, carried out corrections by the Senior Sheristedar, taken print out and then pronounced in the Open Court on this the 8th day of December, 2025).

(Vijaya Kumar Rai)
X Addl. City Civil & Sessions Judge
Bengaluru.

**VIJAYA
KUMAR
RAI B**

Digitally
signed by
VIJAYA
KUMAR RAI B
Date:
2025.12.09
10:34:04
+0530